



NEWS & COMMENTARY

Flock Can Share Driver-Surveillance Data Even When Police Departments Opt Out, And Other Flock Developments

The company's default agreement with police departments grants the company license to share people's license plate data



Jay Stanley, Senior Policy Analyst, ACLU Speech, Privacy, and Technology Project
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There's been more news recently about the driver-surveillance company Flock. The company has recently been [feeling the heat](#) after the revelation that data from its national license plate scanner network was (and likely still is being) [shared with Trump](#) Administration agencies including ICE. Recently my colleagues at the ACLU of Massachusetts carried out a broad statewide open-records project, and among [their findings](#) is that Flock's default agreement with police departments gives the company the right to share data with federal and local agencies for "investigative purposes" even if a local department chooses to restrict data to its own officers.

Every community in the nation that is home to Flock cameras should look at the user agreement between their police department (or other Flock customers) and the company, to see whether it contains a clause stating that the customer "hereby grants Flock" a "worldwide, perpetual, royalty-free free right and license" to "disclose the Agency Data... for investigative purposes." This is the language that will govern in a community unless a department demands changes to the standard user agreement that Flock offers. That is something [we absolutely urge](#) any agencies doing business with Flock to do — and, the ACLU of Massachusetts found, is exactly what the Boston police department did.

Other takeaways from the Massachusetts ACLU's open-records requests to over 80 police departments across the state:

- **Sharing of video.** A Flock [training video](#) that ACLU-MA obtained shows how police departments can not only share their data on the movements of drivers who live in their communities, but also live video as well. When choosing agencies to share data with, an agency can check off network permissions including a department's Video Management System (VMS), which stores video data. Keep in mind that "video" in this context means not just flat files but AI-enhanced intelligence; as Flock emphasizes in an [ominous marketing](#) message, its cameras provide "More Than Recorded Video." (I've recently discussed AI-enhanced cameras [here](#) and [here](#).)
- **Wide sharing.** As in many other states, police in Massachusetts have been sharing data about the movements of state residents with Flock's network, allowing 7,000 agencies and organizations across the United States to access that data. That despite a state "[Shield Law](#)" that bars police from providing information or assistance to out-of-state police in relation to abortion or gender-affirming care. Among Flock's law enforcement customers nationwide, fully 75% have enrolled in the "National Lookup Tool," the company [told](#) Oregon Senator Ron Wyden, who has been conducting oversight inquiries into the company.

Some other Flock-related developments:

Virginia documents reveal yet more sharing of driver-surveillance data with ICE

Also on the data-sharing front, reporters in Virginia [uncovered](#) another police department that has been giving federal immigration authorities access to Flock driver-surveillance data. Despite assurances to the contrary from a number of police departments, thousands of outside law enforcement agencies searched Virginians' driving histories over [7 million times](#) in a 12-month period, including 3,000 immigration-related searches, reporters at the Virginia Center for Investigative Journalism at WHRO-TV found. And one Virginia agency, the Warren County Sheriff's Office, performed more immigration searches than any other in the state — and confirmed that it did so because federal immigration agents asked them to. "We have an intel analyst that works in our criminal investigations division, and she works closely with all federal partners," a department spokesperson confirmed. He said the sharing has since been ended. We don't know how many such "intelligence" analysts are continuing to cooperate with the Trump Administration across the country — but, there are enough such analysts that they have their own [association and conference](#).

Texas police lied through their teeth on abortion search

In May, 404Media [reported](#) that a police department in Texas (where abortion is banned in most circumstances) did a warrantless nationwide Flock search through data on millions of people, logging as the reason "had an abortion, search for female." Alongside reporting about the sharing of driver-surveillance data with ICE, this story generated enormous concern and contributed to skepticism about Flock in [many communities](#). The sheriff of the agency that performed the search told 404Media that the woman's family "was worried that she was going to bleed to death, and we were trying to find her to get her to a hospital," and that "it was about her safety."

Our allies at the Electronic Frontier Foundation, however, used open-records laws to obtain documents about the search and [found that](#) the department had initiated a

month-long “death investigation,” had consulted prosecutors about the possibility of charging the woman, and sent detectives to interview the woman and review her text messages. There was also zero mention or record of police or family concern over her health or safety.

Flock had issued a wounded [statement](#) taking the Texas police officers at their word and decrying the way “misinformation” about the abortion search was being used to unfairly criticize the company. It makes sense that Flock didn’t question the honesty of the Texas police here, because trust that law enforcement won’t engage in abuse is an inherent premise of their entire business.

Flock teams with Amazon’s Ring Cameras in sharing of home video with police

Flock and Ring Cameras (owned by Amazon) [announced](#) a partnership to facilitate the [sharing](#) of Ring customers’ video with law enforcement. It’s not great to see one of America’s biggest companies teaming up with a mass-surveillance company at this authoritarian moment in our history. As [Ars Technica](#) aptly summarized it, the announcement shows Amazon “increasingly positioning its consumer cameras as a law enforcement tool” after previously moving away from that. In addition to reflecting the times, Amazon’s deal also highlights the efforts of Flock and its competitor Axon (which already had a deal with Ring) to become police departments’ centralized “operating system.” Note also that Ring cameras have face recognition enabled.

We [recommend](#) that anyone who feels they really want to install a doorbell camera protect their privacy by storing their video locally or using end-to-end encryption (both [offered](#) by Ring, though inexplicably Ring forces customers to pay [extra](#) *not* to use their cloud service). Both of those options also forestall participation in the police-sharing program.

Flock pushing police “Drones as First Responder” programs into private sector

Police “drones as first responder” (DFR) programs are being launched by an increasing number of police departments nationwide. Under these programs, if you dial 911 the police send a drone to your house, and to other emergency call locations. And we’ve been [concerned](#) about these programs’ implications and called for strict limits on them. Now Flock has begun to offer [DFR programs](#) to [private businesses](#). This use of drones, which the company calls “Drones as Automated Security” (DAS), raises the prospect of private corporate security drones flying around communities, threatening to become another step in the corporatization of American policing.

I don’t see a problem with the owner of a ranch or large industrial complex flying drones around their property, except for potentially issues around filming neighboring properties, as I recently [discussed](#) with regard to the related issue of private drone patrols. But the company is also marketing the service to businesses such as big box stores, where they are [envisioned](#) as helping store security chase shoplifters beyond the property limits into towns. Flock says the system can be tied to the company’s other sensors such as license plate readers, which we know some big box stores are already [rudely using](#) on their unsuspecting customers. Store security workers don’t generally engage in car chases with suspects, but here it sounds like they might be doing the

equivalent with drones, bleeding private security into what should be official police functions.

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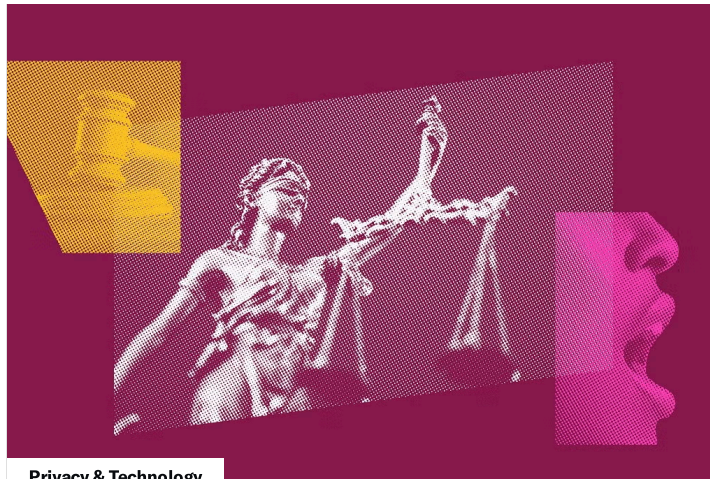
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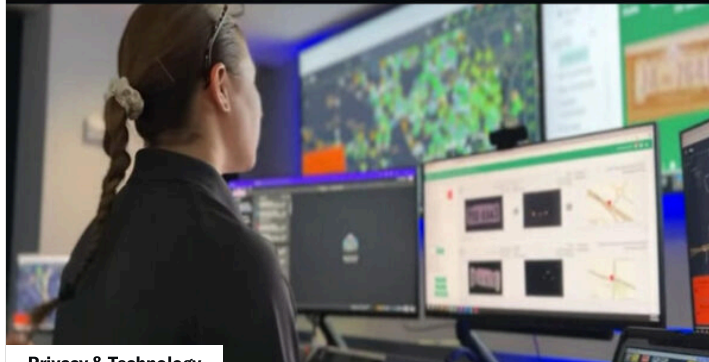
Whether Automated License Plate Reader (ALPR) systems violate individuals' expectations of privacy under the Fourth Amendment.

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Municipalities: Beware of Changes in Flock's Legal Terms if You're Using or Considering License Plate Readers

A flurry of Flock contract changes disempower customers

By: Jay Stanley

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More than a Dozen Wrongful Arrests Due to Police Reliance on Facial Recognition Technology

One ACLU client spent six months in jail, because police relied on facial recognition technology to incorrectly identify her as a suspect. She's the fourteenth person known to be wrongfully arrested due to the technology's failures.

By: Lauren Yu, Nathan Freed Wessler

ACLU

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